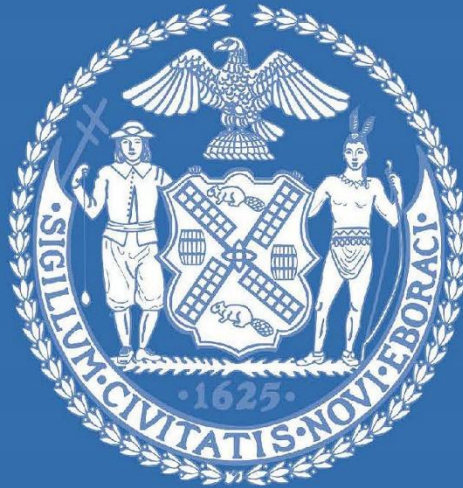


CIVILIAN COMPLAINT REVIEW BOARD

ERIC L. ADAMS, Mayor DR. MOHAMMAD KHALID, Interim Chair JONATHAN DARCHE, Esq. Executive Director



Administrative Prosecution Unit

3rd Quarter 2025 Report

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ADMINISTRATIVE PROSECUTION UNIT BACKGROUND

When the Board substantiates a misconduct allegation and recommends Charges and Specifications, in most instances the case is prosecuted by the CCRB's Administrative Prosecution Unit (APU) pursuant to a Memorandum of Understanding (MOU) between the CCRB and the NYPD.

The APU prosecutes cases before the NYPD Deputy Commissioner of Trials (DCT) or an Assistant Deputy Commissioner of Trials (ADCT). The member of service (MOS) can accept a plea offer in lieu of a trial. If the MOS goes to trial and is found guilty, the NYPD trial commissioner will recommend a penalty. The Police Commissioner may accept, reject, or modify any plea agreement, trial verdict, or penalty recommendation.

The APU treats each officer against whom an allegation is substantiated as a separate case. A single CCRB complaint may generate more than one APU case depending on the number of officers against whom the Board recommends Charges and Specifications.

INTRODUCTION

This report will address the following matters: (i) trial verdicts issued by an Assistant Deputy Commissioner of Trials ("ADCT"); (ii) the treatment of Administrative Prosecution Unit ("APU") pleas by the Police Commissioner ("PC"); (iii) the retention of cases under Provision Two of the April 2, 2012, Memorandum of Understanding ("MOU"); (iv) cases administratively closed by the Police Commissioner; (v) cases closed due to the statute of limitations ("SOL"); (vi) the size of the APU's docket; (vii) the time to serve Charges and Specifications on Respondents; and (viii) the discipline concurrence rate.

The report contains information concerning the following case closures in the third quarter of 2025: six (6) trial verdicts, forty-seven (47) pleas, eight (8) retained cases, ten (10) PC administratively closed cases, and zero (0) APU administratively closed cases. Finally, it includes information regarding the discipline and concurrence rates for the quarter which stand at 80% and 70.5% respectively.

SECTION I: TRIALS

At the conclusion of an administrative trial, the presiding ADCT renders a finding of guilty or not guilty on each of the Charges and Specifications against the member(s) of service ("MOS").¹ For guilty verdicts, the ADCT recommends a penalty for each member of service involved in the case and the Police Commissioner either approves, modifies, or reverses the verdict and recommended penalty.² There is no penalty recommendation for not guilty verdicts. In the third quarter of 2025, the verdicts for six (6) APU trials were finalized. The verdicts can be found below.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	APU RECOMMENDED PENALTY	ADCT DECISION & PC DECISION
201910324 Read Closing Report Here	PO Olga Dudka	1. Force - used a taser against the Victim.	Ten (10) days' vacation forfeiture	The ADCT rendered a not-guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202007674 Read Closing Report Here	LT Jonathan Rivera	1. Force - fired his gun at the Victim. 2. Abuse of Authority - threatened the Victim with the use of force.	Termination	The ADCT rendered a guilty verdict on one (1) charge and dismissed one (1) charge. The ADCT recommended termination. The Police Commissioner disapproved the guilty verdict and imposed no penalty. Read Final Documents Here

¹ The APU treats each officer against whom an allegation is substantiated as a separate "case." As such, all APU data discussed in this report uses the same terminology. While there may be trials or incidents that involve multiple officers, the word "case" should be interpreted as "case against a single officer."

² As the final arbiter of discipline, the Police Commissioner can modify the ADCT penalty and/or reverse a verdict.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	APU RECOMMENDED PENALTY	ADCT DECISION & PC DECISION
202104497 Read Closing Report Here	DTS Brian Fechtmann	1. Abuse of Authority - damaged the Victim's property. 2. Abuse of Authority - searched the Victim's home.	Ten (10) days' vacation forfeiture	The ADCT rendered a not-guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202104497 Read Closing Report Here	DTS John O'Hagan	1. Abuse of Authority - damaged the Victim's property. 2. Abuse of Authority - entered the Victim's home. 3. Abuse of Authority - searched the Victim's home.	Ten (10) days' vacation forfeiture	The ADCT rendered a not-guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202307044 Read Closing Report Here	PO Gerald Suam	1. Force - used pepper spray against the Victim.	Twenty (20) days' vacation forfeiture	The ADCT rendered a not-guilty verdict on all charges. The Police Commissioner approved the not guilty verdict. Read Final Documents Here
202308390 Read Closing Report Here	PO Jonathan Pesce	1. Abuse of Authority - failed to provide the Victim with a business card.	Three (3) days' vacation forfeiture	The ADCT rendered a guilty verdict on the sole charge. The ADCT recommended three (3) days' vacation forfeiture. The Police Commissioner approved the guilty verdict. Read Final Documents Here

SECTION II: PLEAS

In lieu of a trial, the MOS can reach a plea agreement with the APU. This agreement must be approved by both the ADCT and the Police Commissioner. The APU uses several factors to determine plea recommendations, including, but not limited to, MOS length of service, MOS rank, MOS disciplinary history, the facts of the case, the strength of the case, vulnerability of the victim, the extent of any injury, the number of complainants, precedent from cases involving analogous charges, and the delineated penalty categories from the New York City Police Department's ("NYPD") Disciplinary Matrix. In the third quarter of 2025, the APU finalized forty-seven (47) plea agreements.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
201910363 Read Closing Report Here	PO Ganesh Persaud	1. Abuse of Authority - refused to provide his name to Victim 1. 2. Abuse of Authority - refused to provide his shield number to Victim 1. 3. Discourtesy - spoke discourteously to Victim 1. 4. Discourtesy - spoke discourteously to Victim 2. 5. Discourtesy - spoke discourteously to Victim 1. 6. Offensive Language – made remarks based upon the perceived mental disability of Victim 1. 7. Offensive Language - made remarks to Victim 1 based upon religion. 8. Offensive Language - made remarks based upon the perceived mental disability of Victim 1.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202000071 Read Closing Report Here	SGT Jose Santana	1. Abuse of Authority - interfered with the Victim's use of a recording device.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202001377 Read Closing Report Here	SGT Rachid Lora	1. Abuse of Authority - interfered with the Victim's use of a recording device. 2. Abuse of Authority - threatened to arrest the Victim.	The officer pled guilty and accepted training. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here
202003791 Read Closing Report Here	PO Marc Hummel	1. Force - used physical force against Victim 1. 2. Abuse of Authority - threatened Victim 2 with the use of force. 3. Discourtesy - spoke discourteously to Victim 2.	The officer pled guilty and accepted training. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here
202004046 Read Closing Report Here	PO Joseph Orlando	1. Force - used physical force against the Victim. 2. Untruthful Statement - provided a misleading official statement to the CCRB.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202006126 Read Closing Report Here	PO Steve Silverstein	1. Force - used physical force against the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202006217 Read Closing Report Here	PO David Damico	1. Force - used physical force against the Victim. 2. Abuse of Authority - threatened the Victim with the use of force. 3. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted training. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202305057. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202007888 Read Closing Report Here	PO Joseph Desena	1. Force - restricted the Victim's breathing. 2. Force - used a chokehold against the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202008138 Read Closing Report Here	LT Alexander Bobo	1. Abuse of Authority - entered the Victim's apartment. 2. Abuse of Authority - failed to provide the Victim with a business card. 3. Abuse of Authority - searched the Victim's apartment. 4. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted training. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202104779. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202100050 Read Closing Report Here	PO Sergio Musso	1. Discourtesy - En route to the 110th Precinct stationhouse, spoke discourteously to the Victim. 2. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted training. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202301046. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202100459 Read Closing Report Here	PO Haris Ahmemulic	1. Abuse of Authority - threatened the Victim with the use of force. 2. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Case Nos. 202205844 and 202206864. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202101319 Read Closing Report Here	SGT Steven Zanca	3. Abuse of Authority - entered the Victim's home. 4. Abuse of Authority - searched the Victim's home.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202102294 Closing Report Will be Available Upon Closure of all related APU Cases	SGT Eric Carricato	1. Abuse of Authority - forcibly removed the Victim to the hospital. 2. Abuse of Authority - sexually humiliated the Victim through failure to cover.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202103002 Read Closing Report Here	PO Antonio Cantillo	1. Offensive Language - made offensive remarks about the Victim. 2. Offensive Language - made offensive remarks about the Victim.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202103223 Read Closing Report Here	PO Brian Henn	1. Abuse of Authority - interfered with the Victim's use of a recording device. 2. Abuse of Authority - threatened to arrest the Victim.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202103696 Read Closing Report Here	PO Thomas Gerlich	1. Abuse of Authority - interfered with the Victim's use of a recording device. 2. Abuse of Authority - searched the Victim. 3. Abuse of Authority - searched the vehicle in which the Victim was an occupant. 4. Abuse of Authority - seized the Victim's property.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202104779 Read Closing Report Here	LT Alexander Bobo	1. Abuse of Authority - deleted information on the Victim's electronic device.	The officer pled guilty and accepted training. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202008138. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202104888 Read Closing Report Here	PO Melanie Pagan-Burgos	1. Abuse of Authority - interfered with the Victim's use of a recording device.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202104976 Read Closing Report Here	SGT Kenneth Miklas	1. Abuse of Authority - forcibly removed the Victim to the hospital. 2. Abuse of Authority - refused to provide his name to the Victim. 3. Abuse of Authority - threatened to remove the Victim to the hospital.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202105284 Read Closing Report Here	PO Frederick Daley	1. Abuse of Authority - damaged Victim 1's property. 2. Abuse of Authority - threatened to arrest Victim 1. 3. Abuse of Authority - threatened to arrest Victim 2. 4. Discourtesy - spoke discourteously to Victim 1. 5. Offensive Language - made remarks to Victim 1 based upon the mental disability of Victim 1.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202105664 Read Closing Report Here	PO Richard Castellano	1. Force - used physical force against the Victim. 2. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202106260 Closing Report Will be Available Upon Closure of all related APU Cases	SGT Raymond Sze	1. Abuse of Authority - detained the Victim. 2. Untruthful Statement - provided a false official statement to the CCRB.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202200277 Read Closing Report Here	SGT Miguele Amoresano	1. Abuse of Authority - searched Victim 1's home. 2. Abuse of Authority - threatened to arrest Victim 2.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202200277 Read Closing Report Here	LT Ahmad Othman	1. Abuse of Authority - threatened to arrest Victim. 2. Abuse of Authority - threatened to arrest Victim 1.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202200624 Read Closing Report Here	SGT Robert Cox	1. Abuse of Authority - arrested Victim 1 unlawfully. 2. Abuse of Authority - arrested Victim 2 unlawfully.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202201517 Read Closing Report Here	PO Anthony Pala	1. Discourtesy - spoke discourteously to the Victim. 2. Discourtesy - was discourteous to the Victim.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202203959 Read Closing Report Here	PO Brian Bang	1. Abuse of Authority - did not process Victim's 1 complaint regarding an officer. 2. Abuse of Authority - did not process Victim's 2 complaint regarding an officer.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202204631 Read Closing Report Here	LT John Iskaros	1. Abuse of Authority - at the 121st Precinct stationhouse made sexually suggestive gestures towards the Victim. 2. Discourtesy - at the 121st Precinct stationhouse acted discourteously toward the Victim. 3. Discourtesy - at the 121st Precinct stationhouse spoke discourteously to the Victim. 4. Untruthful Statement - provided a false official statement to the CCRB. 5. Offensive Language - at the 121st Precinct stationhouse made remarks to the Victim based upon race. 6. Offensive Language - at the 121st Precinct stationhouse made remarks to the Victim based upon the gender of the Victim.	The officer pled guilty and accepted twenty (20) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to twenty (20) days' vacation forfeiture. Read Final Documents Here
202205427 Read Closing Report Here	SGT Elena Stojanovski	1. Abuse of Authority - did not process the Victim's complaint regarding an officer. 2. Discourtesy - over the telephone spoke discourteously to the Victim.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202205844 Read Closing Report Here	PO Haris Ahmemulic	1. Abuse of Authority - threatened to arrest the Victim. 2. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Case Nos. 202100459 and 202206864. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202206270 Read Closing Report Here	PO Christopher Aylward	1. Abuse of Authority – searched the Victim. 2. Abuse of Authority - stopped the vehicle in which the Victim was an occupant. 3. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202206864 Closing Report Will be Available Upon Closure of all related APU Cases	PO Haris Ahmemulic	1. Abuse of Authority - refused to provide his name to the Victim. 2. Abuse of Authority - refused to provide his shield number to the Victim 3. Discourtesy - spoke discourteously to the Victim. 4. Offensive Language - spoke offensively regarding the Victim's actual or perceived disability.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Case Nos. 202100459 and 202205844. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202207245 Read Closing Report Here	PO Joseph Buttigheri	1. Abuse of Authority - threatened to remove the Victim to the hospital.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202207517 Closing Report Will be Available After CCRB Completes Review	PO Gregory Hernandez	1. Abuse of Authority - attempted to forcibly remove the Victim to the hospital. 2. Abuse of Authority - took law enforcement action based on actual or perceived disability.	The officer pled guilty and accepted Command Discipline A with three (3) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202300828 Read Closing Report Here	PO Giancarlo Pineda	1. Force - used a non-lethal restraining device on the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202301046 Read Closing Report Here	PO Sergio Musso	1. Abuse of Authority - issued an unlawful summons to the Victim.	The officer pled guilty and accepted training. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202100050. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here
202303212 Read Closing Report Here	SGT Miguele Amoresano	1. Abuse of Authority - issued an unlawful summons to the Victim.	The officer pled guilty and accepted training. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here
202303584 Closing Report Will be Available Upon Closure of all related APU Cases	LT Dina Valentin	1. Abuse of Authority - detained Victim 1. 2. Abuse of Authority - failed to provide Victim 1 with a business card. 3. Abuse of Authority - stopped Victim 1.	The officer pled guilty and accepted Command Discipline A with three (3) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202303584 Closing Report Will be Available Upon Closure of all related APU Cases	PO Vincent Galdo	1. Discourtesy - spoke discourteously to Victim 2. 2. Offensive Language - made remarks to Victim 2 based upon the gender of Victim 2.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202304412 Closing Report Will be Available After CCRB Completes Review	PO Brian Ferguson	1. Force - an individual against a wall. 2. Abuse of Authority - threatened to remove an individual to the hospital. 3. Abuse of Authority - took law enforcement action based upon actual or perceived housing status. 4. Discourtesy - acted discourteously toward an individual. 5. Discourtesy - spoke discourteously to an individual. 6. Discourtesy - spoke discourteously to the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202305057 Read Closing Report Here	PO David Damico	1. Abuse of Authority - interfered with the Victim's use of a recording device.	The officer pled guilty and accepted training. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202006217. The Police Commissioner disapproved the plea and dismissed the charges. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202310528 Read Closing Report Here	DTS Yakov Kaushanskiy	1. Untruthful Statement - provided a false official statement to the CCRB.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202310781 Read Closing Report Here	PO John Tobin	1. Force - physical force against the Victim.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202310894 Closing Report Will be Available Upon Closure of all related APU Cases	SGT Salvator Maida	1. Abuse of Authority - seized Victim 1's property. 2. Abuse of Authority - failed to explain to Victim 1 the reason for a law enforcement activity. 3. Abuse of Authority - failed to explain to Victim 2 the reason for a law enforcement activity. 4. Abuse of Authority - failed to provide Victim 2 with a business card. 5. Discourtesy - spoke discourteously to Victim 1. 6. Discourtesy - spoke discourteously to Victim 2.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	PLEA AGREEMENT
202311974 Read Closing Report Here	PO Stanislav Yakovlev	1. Abuse of Authority - refused to provide his name to the Victim. 2. Abuse of Authority - refused to provide his shield number to the Victim. 3. Discourtesy - spoke discourteously to the Victim. 4. Offensive Language - made remarks to the Victim based upon race.	The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202401891 Read Closing Report Here	SGT Mehmet Kanbur	1. Abuse of Authority - entered the Victim's home. 2. Abuse of Authority - searched the Victim's home.	The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here
202407921 Closing Report Will be Available Upon Closure of all related APU Cases	PO Enmanuel Diazsantana	1. Force - used a non-lethal restraining device on the Victim. 2. Abuse of Authority - failed to activate his body-worn camera.	The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty. Read Final Documents Here

SECTION III: RETAINED CASES

The Police Commissioner can retain a case, which means that the case is removed from the APU, in accordance with Provision Two of the MOU,³ which states that:

in those limited circumstances where the Police Commissioner determines that CCRB's prosecution of Charges and Specifications in a substantiated case would be detrimental to the Police Department's disciplinary process, the Police Commissioner shall so notify CCRB. Such instances shall be limited to such cases in which there are parallel or related criminal investigations, or when, in the case of an officer with no disciplinary history or prior substantiated CCRB complaints, based on such officer's record and disciplinary history the interests of justice would not be served.

After a case is retained, the Police Commissioner can decide whether or not to impose discipline on an officer. In the third quarter of 2025, the Police Commissioner retained eight (8) cases.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202311285 Closing Report Will be Available Upon Closure of all related APU Cases	PO Arjun Kumar	1. Abuse of Authority - failed to provide the Victim with a business card. 2. Discourtesy - spoke discourteously to the Victim.	The Police Commissioner retained the case and issued discipline to the officer – training. Read Final Documents Here
202400967 Read Closing Report Here	PO Conor McGouran	1. Abuse of Authority - failed to activate his body-worn camera. 2. Abuse of Authority - failed to explain to the Victim the reason for a law enforcement activity. 3. Abuse of Authority - failed to provide the Victim with a business card. 4. Abuse of Authority - stopped the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with two (2) days' vacation forfeiture. Read Final Documents Here

³ https://www.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202401079 Read Closing Report Here	PO Harryson Cothias	1. Abuse of Authority - entered the Victim's home. 2. Abuse of Authority - failed to provide the Victim with a business card. 3. Abuse of Authority - improperly used his body-worn camera.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with one (1) day vacation forfeiture. Read Final Documents Here
202401226 Closing Report Will be Available Upon Closure of all related APU Cases	PO Key Matiascastillo	1. Abuse of Authority - failed to activate his body-worn camera. 2. Discourtesy - was discourteous to the Victim. 3. Offensive Language - was offensive to the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with three (3) days' vacation forfeiture. Read Final Documents Here
202401509 Read Closing Report Here	PO Luigi Scalici	1. Abuse of Authority - at the 90th Precinct stationhouse provided a false official statement against the Victim.	The Police Commissioner retained the case and issued discipline to the officer – five (5) days' vacation forfeiture. Read Final Documents Here
202402470 Closing Report Will be Available After CCRB Completes Review	PO Richard Brown	1. Force - used physical force against the Victim. 2. Discourtesy - spoke discourteously to the Victim.	The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with five (5) days' vacation forfeiture. Read Final Documents Here

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR RETAINMENT
202402600 Closing Report Will be Available Upon Closure of all related APU Cases	PO Cameron Deluise	1. Force - used physical force against the Victim. 2. Discourtesy - spoke discourteously to the Victim.	The Police Commissioner retained the case and issued no discipline to the officer. <u>Read Final Documents Here</u>
202404025 Closing Report Will be Available Upon Closure of all related APU Cases	PO Cam Ates	1. Abuse of Authority - interfered with an individual's use of a recording device.	The Police Commissioner retained the case and issued no discipline to the officer. <u>Read Final Documents Here</u>

SECTION IV: POLICE COMMISSIONER ADMINISTRATIVELY CLOSED CASES

The Police Commissioner will administratively close a case when an officer resigns, retires, or is disciplined by an internal NYPD process. Such cases require no further action from the APU. In the third quarter of 2025, the Police Commissioner administratively closed ten (10) cases.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR CASE CLOSURE
201808324 Read Closing Report Here	DTS Fabio Nunez	1. Force - restricted the Victim's breathing. 2. Force - used a chokehold against the Victim.	Department adjudication in process.
201909958 Read Closing Report Here	POM Timothy Burke	1. Force - at the 52nd Precinct stationhouse struck Victim 1 with a shoe. 2. Discourtesy - spoke discourteously to Victim 1. 3. Discourtesy - spoke discourteously to Victim 2. 4. Discourtesy -at the 52nd Precinct stationhouse spoke discourteously to Victim 1. 5. Discourtesy -at the 52nd Precinct stationhouse, spoke discourteously to Victim 2. 6. Untruthful Statement - provided a misleading official statement to the CCRB.	Officer retired.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR CASE CLOSURE
202002163 Read Closing Report Here	PO Dana Ladson	1. Abuse of Authority - damaged Victim 1's property. 2. Abuse of Authority - interfered with Victim 2's use of a recording device. 3. Abuse of Authority - issued a retaliatory summons to Victim 2. 4. Abuse of Authority - threatened Victim 1 with the use of force. 5. Discourtesy - spoke discourteously to Victim 2. 6. Discourtesy - spoke discourteously to Victim 1.	Officer resigned.
202105168 Closing Report Will be Available Upon Closure of all related APU Cases	DT3 Michael Parks	1. Abuse of Authority -entered the Victim's home.	Officer retired.
202206654 Read Closing Report Here	DT3 Leonid Shatkin	1. Discourtesy - at various locations, spoke discourteously to the Victim. 2. Offensive Language - at various locations, made remarks based on the Victim's gender identity.	Officer retired.
202300493 Closing Report Will be Available After CCRB Completes Review	PO Robert Stosch	1. Abuse of Authority - took law enforcement action based upon actual or perceived race.	Officer resigned.

COMPLAINT	OFFICER	CCRB SUBSTANTIATED ALLEGATIONS	REASON FOR CASE CLOSURE
202303998 Closing Report Will be Available After CCRB Completes Review	PO Robert Stosch	1. Force - used physical force against the Victim. 2. Abuse of Authority - arrested the Victim unlawfully. 3. Abuse of Authority - threatened the Victim with the use of force. 4. Abuse of Authority - took law enforcement action based upon actual or perceived race.	Officer resigned.
202311805 Read Closing Report Here	PO Angel Estrella	1. Abuse of Authority - made a sexually suggestive remark to the Victim.	Officer took terminal leave.
202400563 Closing Report Will be Available Upon Closure of all related APU Cases	PO Aliskal Thensantana	1. Abuse of Authority - improperly used his body-worn camera. 2. Discourtesy - acted discourteously toward the Victim. 3. Discourtesy -spoke discourteously to the Victim.	Officer resigned.
202405659 Read Closing Report Here	PO David Teran	1. Force - struck Victim 1 with a vehicle. 2. Force - struck Victim 2 with a vehicle.	Department adjudication in process.

SECTION V: APU ADMINISTRATIVELY CLOSED CASES

The SOL is the 18-month timeframe within which a disciplinary proceeding must commence against an officer.⁴ Unless the case falls under the crime exception, once the SOL period elapses, a case may not proceed and will be closed without further action. In the third quarter of 2025, the APU administratively closed zero (0) cases for SOL reasons.

⁴ Under New York Civil Service Law § 75(4), a disciplinary proceeding cannot be commenced more than 18 months after the incident, but that time limitation does not apply where the alleged misconduct, as described in the Charges and Specifications, would constitute a crime.

The service of Charges and Specifications on a MOS is considered a commencement of a disciplinary proceeding.

SECTION VI: THE APU DOCKET

The APU's docket increased in the third quarter of 2025 compared to the second quarter of 2025. The sustained docket size is attributable to the increased number of Charges and Specifications recommended by the CCRB's Board pursuant to the Disciplinary Matrix and the overall increase in the number of complaints received by the Agency.

Cases in Open Docket					
Period	Start of Quarter	Received During Quarter	Closed During Quarter	End of Quarter	Growth
4 th Quarter 2024	696	117	66	747	7.3%
1 st Quarter 2025	747	114	57	804	7.6%
2 nd Quarter 2025	804	146	72	878	9.2%
3 rd Quarter 2025	878	88	71	895	1.9%

SECTION VII: SERVICE OF RESPONDENTS

The average wait time for Respondents to be served increased slightly between the second and third quarters of 2025.

Time to Serve Respondents			
Period	Number of Respondents Served	Average Length to Serve Respondents	Average Length to Serve Respondents (Business Days)
4 th Quarter 2024	108	18	13
1 st Quarter 2025	99	19	13
2 nd Quarter 2025	100	20	14
3 rd Quarter 2025	103	30	21

SECTION VIII: CONCURRENCE AND DISCIPLINE

The concurrence rate measures how often the Police Commissioner imposes the same (or more severe) discipline as recommended by the Board. The discipline rate measures how often the Police Commissioner imposes discipline of any kind. Certain “Not Adjudicated” case outcomes, such as when the officer left the force prior to discipline being imposed, do not factor into the concurrence or discipline rate.

Q3 2025 APU Concurrence and Discipline			
Discipline Count	49	Concurrence Count	43
No Discipline Count	12	Non-Concurrence Count	18
Not Adjudicated Count	10	Not Adjudicated Count	10
Discipline %	80%	Concurrence %	70.5%